

		Plaintiff to give notice.
108	Toppan Merrill LLC vs. Mobix Labs, Inc. 25-01458566	Motion to Correct Clerical Error Plaintiff Toppan Merrill LLC's unopposed Motion to Correct Clerical Error is GRANTED. It appears to the Court that there is a clerical mistake in the judgment entered on 5/20/25, in that the Line 6 of Paragraph 6(a) incorrectly indicates that "Total" damages are \$315,036.70. This number is the result of a mathematical error, as it does not correctly reflect the total of the three individual components of damage set forth in Paragraph 6 of the judgment. The total is \$315,564.70. Accordingly, pursuant to CCP §473(d), the Court will sign Plaintiff's proposed Amended Judgment, which is attached as Exhibit C to the moving papers. The Amended Judgment corrects line 6 of Paragraph 6(a) to reflect the total damages of \$315,564.70. Clerk to give notice
109	Hernandez vs. Montage Laguna Beach, LLC 25-01521170	Motion to Compel Arbitration Defendants Montage Laguna Beach, LLC, Sebastian French, Jennifer Beaumont, and Lucia Arcadia ("Defendants") move to compel arbitration and stay the case pending arbitration. Plaintiff Armanda Millicent Hernandez ("Plaintiff") opposed the motion. The Motion is DENIED. "In 2022, Congress amended the FAA by adopting the EFAA." (Doe v. Second Street Corp. (2024) 105 Cal.App.5th 552, 564.) "By its terms, the EFAA applies 'with respect to any dispute or claim that arises or accrues on or after the

	date of enactment of this Act’—i.e., March 3, 2022.” (Ibid.) “Under section 402, the applicability of the EFAA is governed by federal law and is to be decided by a court, as opposed to an arbitrator.” (Liu v. Miniso Depot CA, Inc. (2024) 105 Cal.App.5th 791, 802, review denied (Dec. 31, 2024), cert. denied (2025) 146 S.Ct. 107 [citing § 402(b)].) The EFAA, 9 U.S.C. § 402, states: “(a) In general.--Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute. (b) Determination of applicability. --An issue as to whether this chapter applies with respect to a dispute shall be determined under Federal law. The applicability of this chapter to an agreement to arbitrate and the validity and enforceability of an agreement to which this chapter applies shall be determined by a court, rather than an arbitrator, irrespective of whether the party resisting arbitration challenges the arbitration agreement specifically or in conjunction with other terms of the contract containing such agreement, and irrespective of whether the agreement purports to delegate such determinations to an arbitrator.” (9 U.S.C.A. § 402.) The plain language of 9 U.S.C. § 402 expressly states that “no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the
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	sexual harassment dispute.” (9 U.S.C.A. § 402, subd. (a).)1 “Under the EFAA, if a plaintiff’s action ‘relates to ... the sexual harassment dispute,’ then, at the plaintiff’s election, the arbitration agreement is not valid or enforceable ‘with respect to’ the entire case/action.” (Liu v. Miniso Depot CA, Inc. (2024) 105 Cal.App.5th 791, 803, review denied (Dec. 31, 2024), cert. denied (U.S., Oct. 6, 2025, No. 24-1215) 2025 WL 2823782 [emphasis added].) “Under the language of section 402(a), a plaintiff who ‘alleg[es] conduct constituting a sexual harassment dispute’ can elect to render an arbitration agreement invalid or unenforceable ‘with respect to’ the plaintiff’s ‘case,’ and not just the ‘sexual harassment dispute.’ ” (Id., at 804 [emphasis added].) “Allowing a plaintiff ‘alleging conduct constituting a sexual harassment dispute’ (§ 402(a)) to opt out of arbitration for their entire case avoids the potential for inefficiency in having separate proceedings in court and an arbitration forum, and the related additional burden placed on the parties of having to litigate claims in both a court proceeding and an arbitration.” (Liu v. Miniso Depot CA, Inc. (2024) 105 Cal.App.5th 791, 804, review denied (Dec. 31, 2024), cert. denied (U.S., Oct. 6, 2025, No. 24-1215) 2025 WL 2823782.) “In addition, having a clear-cut rule that can be easily applied allows courts to avoid making the sometimes-difficult determination, particularly at the pleading stage, whether a given claim sufficiently overlaps with allegations of sexual harassment.” (Ibid.) Given the authority above, whether a case is subject to arbitration turns on whether the plaintiff’s action relates to the sexual harassment dispute. A “‘sexual harassment dispute’ means a dispute relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law.” (9 U.S.C.A. § 401, subd. (4).)
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		“[P]rohibited harassment includes ‘verbal, physical, and visual harassment, as well as unwanted sexual advances.’ [Citation.] In this regard, verbal harassment may include epithets, derogatory comments, or slurs on the basis of sex.” (Kruitbosch v. Bakersfield Recovery Services, Inc. (2025) 114 Cal.App.5th 200, 211 [citing Lyle, supra, 38 Cal.4th at pp. 280–281].) “[T]he prohibition against sexual harassment includes protection from a broad range of conduct, [including] the creation of a work environment that is hostile or abusive on the basis of sex.” (Kruitbosch v. Bakersfield Recovery Services, Inc. (2025) 114 Cal.App.5th 200, 211 [citing Lyle v. Warner Brothers Television Productions (2006) 38 Cal.4th 264, 277].) “The working environment must be evaluated in light of the totality of the circumstances.” (Kruitbosch v. Bakersfield Recovery Services, Inc. (2025) 114 Cal.App.5th 200, 211.) “These may include the frequency of the discriminatory conduct; its severity, whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee’s work performance.” (Ibid.) “The required level of severity or seriousness varies inversely with the pervasiveness or frequency of the conduct.” (Ibid.) “[S]imple teasing, offhand comments, and isolated incidents (unless extremely serious) are not sufficient to create an actionable claim of harassment.” (Kruitbosch v. Bakersfield Recovery Services, Inc. (2025) 114 Cal.App.5th 200, 211 [citing Bailey v. San Francisco Dist. Attorney's Office (2024) 16 Cal.5th 611, 628 (Bailey); accord, Miller v. Department of Corrections (2005) 36 Cal.4th 446, 462] [internal quotations omitted].) “The objective severity of harassment should be judged from the perspective of a reasonable person in the plaintiff’s position.” (Kruitbosch v. Bakersfield Recovery Services, Inc. (2025) 114 Cal.App.5th 200,
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211 [citing Bailey, supra, at p. 629; accord, Miller, supra, at p. 462].)

“An employee claiming harassment based upon a hostile work environment must demonstrate that the conduct complained of was severe enough or sufficiently pervasive to alter the conditions of employment and create a work environment that qualifies as hostile or abusive to employees because of their sex.” (Lyle v. Warner Brothers Television Productions (2006) 38 Cal.4th 264, 278–279.)

Here, the Court finds that Plaintiff’s action is based on and relates to a sexual harassment dispute. As an initial matter, Plaintiff brings her action for discrimination in violation for the FEHA based on gender/sex (and other grounds), harassment/hostile work environment in violation of the FEHA based on gender/sex (and other grounds), retaliation in violation of the FEHA, and failure to prevent discrimination, harassment, or retaliation in violation of FEHA. Plaintiff also brings causes of action for failure to provide reasonable accommodation in violation of FEHA and failure to engage in interactive process in violation of FEHA.

In her operative Complaint, Plaintiff alleges that Defendant Joshua Fisher repeatedly made sexually charged and inappropriate comments to Plaintiff at the workplace, flirted with Plaintiff at the workplace, drunk called Plaintiff late at night during her off-work hours, and made advances towards Plaintiff at the workplace. (See FAC, ¶ 15, subd. (e)-(m).) Plaintiff repeatedly rebuffed Defendant Fisher’s advances but Fisher’s conduct continued. (Ibid.)

Eventually, however, “Fisher’s demeanor and interactions with Plaintiff became antagonistic and hostile after Fisher realized that Plaintiff would not return his advances and engage with his inappropriate comments towards her. Fisher’s sexual or romantic comments turned into passive aggressive comments and ignoring her.” (FAC, ¶ 15, subd. (k).) Plaintiff

		alleges that Fisher ultimately changed her work schedule from day to nights because she refused to accept, entertain, and reciprocate his sexual comments and advances. The Court finds that changing Plaintiff's work schedule because of her refusal to entertain and reciprocate Defendant Fisher's repeated sexual comments and advances constitutes harassment that altered the conditions of her employment and created a work environment that qualifies as hostile or abusive to her because of her sex. Given the above, the Court finds that Plaintiff's action relates to the sexual harassment dispute and she may therefore "elect to render an arbitration agreement invalid or unenforceable 'with respect to' the plaintiff's 'case,' and not just the 'sexual harassment dispute.'" (Liu v. Miniso Depot CA, Inc. (2024) 105 Cal.App.5th 791, 803-804, review denied (Dec. 31, 2024), cert. denied (U.S., Oct. 6, 2025, No. 24-1215) 2025 WL 2823782.) The Motion to Compel Arbitration is DENIED. The parties' requests for judicial notice are GRANTED. The Court notes that the Court orders provided by the parties are merely persuasive authority. The Court exercises its discretion to consider the late-filed opposition. (Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker (2016) 2 Cal.App.5th 252, 262; Mackey v. Board of Trustees of California State University (2019) 31 Cal.App.5th 640, 657.) Plaintiff to give notice.
110	Prime Healthcare Services - Garden Grove, LLC vs. Optumcare Management, LLC	Motion to Seal Plaintiffs Prime Healthcare Services – Garden Grove LLC, et al. ("Plaintiffs") move pursuant to California Rules of Court, rule 2.550 to seal the following: (1) the

	23-01357480	Prime Hospitals’ Motion in Limine No. 2 to Exclude Evidence Regarding the Costs and Margins of Providing Services, (2) the Prime Hospitals’ Motion in Limine No. 3 to Exclude Evidence Regarding Patient Accounts Lacking Medical Necessity that Optum Failed to Identify in Discovery, (3) Omnibus Declaration of James L. Poth in Support of the Prime Hospitals’ Motions in Limine Nos. 1, 2, and 3, (4) Exhibits A; C; G-I; and K to the Omnibus Declaration of James L. Poth in Support of the Prime Hospitals’ Motions in Limine Nos. 1, 2, and 3, (5) Plaintiffs’ Opposition to Defendant’s Motion in Limine No. 7 to Exclude Expert Testimony of Chris Fritz, (6) Omnibus Declaration of James L. Poth in Support of Opposition to Optum’s Motions in Limine, and (7) Exhibits 8-12; 16; 22-24; 2-27; 31-32; 34, and 40 to the Omnibus Declaration of James L. Poth in Support of Oppositions to Optum’s Motions in Limine. Defendant OptumCare Management, LLC (“Defendant”) filed a notice of non-opposition. Under California Rules of Court, rule 2.550(d), the Court may order a record to be filed under seal if it finds that: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal. 4th 1178, 1218.) When disclosure of private and confidential financial information relating to the business operations of a party would interfere with that party’s ability to compete in the marketplace, a sealing order may be appropriate. (See Universal City Studios, Inc. v. Superior Court (2003) 110 Cal.App.4th 1273, 1286.)
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